

24NNCV06649 24NNCV06649

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-18

Motion: MOTION FOR ATTORNEY FEES

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Case Number: 24NNCV06649 Hearing Date: September 18, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

MARAL
TAMAR BAGHJEDJIAN,

Plaintiff(s),

vs.

VOLKSWAGEN
GROUP OF AMERICA, INC.,

Defendant(s).

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CASE NO.: 24NNCV06649

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEY FEES

Dept.

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8:30

a.m.

September

18, 2026

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Plaintiff Maral Tamar Baghjedjian moves
for an award of attorneys' fees, costs, and expenses pursuant to Civil Code § 1794,
subdivision (d). Defendant Volkswagen Group of America, Inc. ("Defendant") did
not oppose the motion.

Under the Song-Beverly Consumer
Warranty Act ("SBA"), prevailing buyers have the burden to show that the fees
incurred were reasonably necessary to the conduct of the litigation and were
reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174
Cal.App.4th 967, 998 (Doppes).) The SBA requires the trial court to make
an initial determination of the actual time expended; and then to ascertain

whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.) The question whether attorneys’ fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

Plaintiff’s counsel, Arye C. Abraham, requests a base lodestar of \$50,252.50, a 1.2 multiplier of \$10,050.44, and \$688.25 in costs and expenses, for a total award of \$60,991.19. Mr. Abraham requests an hourly rate of \$675 for this case, citing two other trial court orders from March 2025 and January 2026 in which his hourly rate of \$625 was approved. Mr. Abraham declares that his rate is based on factors such as his years of litigation experience, which include more than 250 SBA actions, the skills and knowledge acquired over those years, and the rates charged by other attorneys in the area. (Abraham Decl., ¶ 6.)

The motion is unopposed and Defendant does not dispute the reasonableness of Plaintiff’s counsel’s hourly rate. However, the Court notes that the billing records supporting Plaintiff’s counsel’s lodestar amount includes time entries for “anticipated” work in reviewing and responding to any opposition motion. The motion is unopposed, therefore, the Court reduces the base lodestar by 10 hours, for a total reduction of \$6,750. The Court also declines to award a multiplier because there is no showing that the case required any exceptional skill, beyond that possessed by counsel and reflected in the hourly billing rate, or that it required Plaintiff’s counsel to turn down other work.

Accordingly, the Court GRANTS Plaintiff’s motion in part and awards \$43,502.50 in attorney fees and \$688.25 in costs and expenses, for a total award of \$44,190.75.

Plaintiff to give notice.

Dated
this 18th
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.